HEADNOTE

"1. According to R. 221.2 (a) RoP the application for leave to appeal shall set out the reasons why the appeal should be heard. In other words, the application must specify why leave to appeal should be granted. The purpose of the requirement to set out the reasons why the appeal should be heard enables the standing judge to examine whether the conditions for leave to appeal have been met solely on the basis of the application and the impugned decision, taking into account the specific references to the case file contained therein. Referring to the written submissions in general is not sufficient for this purpose.
2. Leave to appeal a decision referred to in R. 157 RoP (hereinafter "cost decision" or "cost determination") shall be granted if the impugned decision of the judge-rapporteur is manifestly erroneous or the impugned decision raises a fundamental question of law and its review is necessary to ensure a consistent application of law or any other objective of granting leave to appeal (see the case-law with regard to discretionary review, for which R. 220.3 RoP stipulates that the request shall set out the matters referred to in R. 221 RoP: CoA, UPC-CoA-489/2024, 6 September 2024, Motorola v. Ericsson, para. 4; UPC-CoA-805/2025, 1 September 2025, Centripetal v. Keysight, paras. 8 and 11; 19 May 2026, UPC-CoA-67/2026, ASC v Xiaomi para. 10).
3. In the application for leave to appeal under R. 221.1 RoP, the Applicant must therefore specify the reasons which justify granting leave to appeal, for example whether the impugned decision of the CFI is manifestly erroneous or raises a fundamental question of law, which is relevant for the outcome, and its review is necessary to ensure a consistent application of law. In the latter case, the applicant must demonstrate that there are differing views amongst the court or explain the reasons why there is otherwise a need for clarification of the legal issue (see CoA, 6 September 2024, UPC- CoA-489/2024, Motorola v Ericsson, para. 4).
4. Where the applicant asserts a manifest error, it must be apparent from the appellant's submission that the decision would probably have been different had the Court of First Instance not made a manifest error.
5. Exceeding the applicable ceiling does not automatically entitle a party to reimbursement up to the ceiling set by the Administrative Committee pursuant to R. 152.2 RoP. The ceiling on the recoverable representation costs is only one of many safeguards against undue cost recovery, and the last one to apply when the Court makes its decision on costs (Administrative Committee, Decision of 24 April 2023 on the scale of recoverable cost ceilings, hereinafter "Decision on ceilings", consideration para. 1). In particular, according to Art. 69(1) UPCA and R. 152.1 RoP, only reasonable and proportional legal costs and other expenses incurred by the successful party may be recovered from the unsuccessful party (see Decision on ceilings, consideration para. 1). Only the recoverable costs established in compliance with the principles set in Art. 69 UPCA are measured against the ceilings set forth in the Decision on the scale of recoverable cost ceilings. There is a large margin of appreciation for the Court when applying the safeguarding principles before making a cost decision, and thus, the ceilings are only to be regarded as a safety net, i.e. an absolute cap on recoverable representation costs applicable in every case (see Decision on ceilings, consideration para. 1).
6. Whether it is admissible for the respondent to include its own costs in its defence in the cost proceedings without filing itself a formal application under R. 151 RoP can be left open. In any case, even if this were considered permissible, the time limits set out in R. 151 RoP must not be circumvented. This means that the time limit in R. 151 RoP applies to the defence.
7. As a general rule, the applicant in the PI proceedings, may not admissibly lodge an application for cost

> *determination before the decision on the merits is issued: proceedings under R. 150 RoP et seq. is not a re-examination of which party is entitled to cost reimbursement under Art. 69 UPCA. In proceedings for provisional measures, this decision (hereinafter referred to as "cost allocation") should be made in the order deciding on the application for provisional measures (see Hanshow v Vusiongroup, para. 37). Similarly, in the proceedings on the merits, the decision on the merits should contain a cost allocation decision (see Hanshow v Vusiongroup para. 38). The only issue subject to separate proceedings for a cost decision pursuant to R. 150 RoP et seq. is cost determination, i.e. the question of which costs to which amount are recoverable (see R. 150.1 RoP).”*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Appeal

PATENT
EP 3 732 827

METHOD AND SYSTEM FOR MAKING FUNCTIONAL DEVICES AVAILALBLE TO PARTICIPANTS OF MEETINGS

KEYWORDS

- R. 221 RoP (requirements for leave to app...
- Art. 76(1) UPCA specific request in an appl...
- Cost allocation according to R. 118.5 RoP ...
- R. 151 first sentence RoP
- time period for starting proceedings for cos...
- R. 152.2 RoP
- scale of ceilings for recoverable costs
- Art. 69(1) UPCA
- R. 152.1 RoP
- reasonable and proportionate costs
- fee for an application for leave to appeal ag...

Rule 221 Application for leave to appeal against cost decisions

SUMMARY
The Court of Appeal in Luxembourg ruled on an appeal concerning costs. The patent at issue relates to a method and system for making functional devices available to participants of meetings. According to the headnotes of the decision, applications for leave to appeal must specify concrete reasons why the appeal should be heard. General references to written submissions are insufficient for the standing judge to assess whether leave to appeal conditions are met. Further, leave to appeal a cost decision shall be granted only if the underlying decision is manifestly erroneous or raises a fundamental question of law. Additionally, any such review must be necessary to ensure consistent application of law across the court system. In particular, when asserting manifest error, the appellant must demonstrate that the decision would likely have differed absent that error. The court emphasized that exceeding applicable cost ceilings does not automatically entitle a party to full reimbursement. The ceilings represent only one safeguard among many against excessive cost recovery. Therefore, courts must first apply principles of reasonableness and proportionality before measuring costs against the established ceilings. This means the ceilings function as an absolute cap rather than a guaranteed entitlement. Furthermore, respondents must observe procedural time limits when raising their own costs in defense, even where procedurally permissible. Additionally, in proceedings on the merits, cost allocation decisions should be made within the main decision itself. The separate cost determination proceedings address only which specific costs are recoverable and in what amounts.